

H. Interpretation of the EPC

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On the interpretation of provisions of the EPC, the EPC itself provides relatively little guidance. There is the Protocol on the Interpretation of Art. 69 EPC of 5 October 1973 as revised by the Act revising the EPC of 29 November 2000. This deals with the extent of protection under Art. 69 EPC. Otherwise, the EPC contains only regulations like the hierarchy of legal provisions (Art. 150(2) and 164(2) EPC) and the equal authenticity of the EPC in its three official language versions (Art. 177 EPC). Art. 125 EPC is not concerned with the interpretation of the EPC but serves merely as a "fill-in" in case of missing procedural provisions. The EPC itself thus contains no general rules for its interpretation, and one must look outside the terms of the Convention itself for such rules (G 2/12, G 2/13, OJ 2016, A27 and A28).

As an international treaty, the EPC has to be interpreted in accordance with the rules of interpretation developed in the so-called "law of nations" or public international law. To the traditional kind of international treaty which regulates legal relations between States had to be added the treaty which directly creates and defines rights and duties for individuals and corporate bodies (G 5/83, OJ 1985, 64; G 2/12, G 2/13).

In the interpretation of international treaties which provide the legal basis for the rights and duties of individuals and corporate bodies it is necessary to pay attention to questions of harmonisation of national and international rules of law. The boards of appeal may take into consideration decisions and opinions given by national courts in interpreting the law (see G 5/83, OJ 1985, 64; see also G 2/12, G 2/13). Nevertheless, in the proceedings before the European Patent Office, such considerations do not exonerate a board of appeal from its duty as an independent judicial body to interpret and apply the EPC and to decide in last instance in patent granting matters. TRIPS provisions, like decisions of the European and International Courts of Justice and national decisions, are elements to be taken into consideration by the boards of appeal but are not binding on them (T 154/04, OJ 2008, 46). See also J 14/19.

Although the European Patent Organisation is not a party to the Vienna Convention on the Law of Treaties concluded on 23 May 1969 (hereinafter Vienna Convention), the principles of interpretation of Arts. 31 and 32 of the Vienna Convention are to be applied to the interpretation of the EPC even though its provisions do not apply to the EPC ex lege (G 5/83, G 2/08, OJ 2010, 456). The boards of appeal thereby refer to legal sources outside the EPC, including, for example, above-mentioned Vienna Convention and the TRIPS Agreement. Thus the boards of appeal may be guided in their decisions by the provisions of other international instruments. However, they have no obligation to apply them directly (G 2/02 and G 3/02, OJ 2004, 483).

1. The Vienna Convention on the Law of Treaties

In G 5/83 (OJ 1985, 64) the Enlarged Board stated that the provisions of the Vienna Convention do not apply to the EPC ex lege, since the former Convention applies only to treaties which are concluded by States after the entry into force of the Vienna Convention with regard to such States (Art. 4 Vienna Convention). At the time of conclusion of the EPC, the Vienna Convention was not in force. Nevertheless, there were convincing precedents for applying the rules for interpretation of treaties incorporated in the Vienna Convention to a treaty to which in terms they do not apply (see also G 2/12, G 2/13). The International Court of Justice did already apply principles expressed in the Vienna Convention to situations to which the Convention strictly did not apply, whilst the European Court of Human Rights, the Federal German Constitutional Court and the House of Lords (England) have also applied the principles of interpretation in Art. 31 and 32 of the Convention to treaties to which strictly they do not apply. After a careful study of the whole subject, the Enlarged Board of Appeal concluded that the European Patent Office had to do the same.

In J 10/98 (OJ 2003, 184) the Legal Board of Appeal stated that, although the Vienna Convention did not expressly apply to the interpretation of EPC, PCT or the Paris Convention, since it came into force at a later date than all of those treaties, in accordance with what had been recognised by the Enlarged Board of Appeal in decision G 5/83, its principles of interpretation were a valuable guide to the interpretation of all treaties executed both before and after it. In T 1173/97 (OJ 1999, 609) the board stated that although the Vienna Convention is not applicable to the EPC, it has considerable authority

and has frequently been cited by the boards of appeal when applying principles laid down in it.

1.1. Principles of interpretation of the Vienna Convention

It is established in the jurisprudence that the principles of interpretation provided for in Art. 31 and 32 Vienna Convention are to be applied when interpreting the EPC. Decisions and opinions given by national courts in interpreting the law may also be taken into consideration (G 2/12, G 2/13; G 3/19, OJ 2020, A119). These principles have been acknowledged and applied by the Enlarged Board and the boards of appeal alike (G 5/83; G 2/02 and G 3/02, OJ 2004, 483; G 2/08, OJ 2010, 456; G 3/14, OJ 2015, A102; G 1/16, OJ 2018, A70; G 1/18, OJ 2020, A26; J 10/98, OJ 2003, 184; T 128/82, OJ 1984, 164; T 1173/97, OJ 1999, 609; T 1807/15, OJ 2021, A92; J 12/18).

1.1.1 The interpretation of good faith in accordance with the ordinary meaning

In G 2/08 (OJ 2010, 456) the Enlarged Board stated that from the reading of Art. 31 and 32 of the Vienna Convention taken together it follows that the provisions of a treaty (here the EPC) must first be construed according to the ordinary meaning of the terms in their context and in the light of its **object and purpose**, which means that the judge is not entitled to depart from clear provisions of law, this principle pertaining to the requirement of good faith. From the wording of Art. 32 Vienna Convention it can also be derived that **preparatory documents** are primarily to be drawn into consideration in order to confirm a meaning or to determine a meaning if the first and ordinary means of construction would lead to ambiguity or to an absurd result (see also decision G 1/07 of 15 February 2010, OJ 2011, 134, point 3.1 of the Reasons; G 1/18, point III. of the opinion).

In G 2/12 and G 2/13 (OJ 2016, A27 and A28) the Enlarged Board stated that this objective method of interpretation is directed to establishing the "authentic" meaning of the relevant provision and its legal terms. The starting point of interpretation is thus the wording, i.e. the "objective" meaning, regardless of the original "subjective" intention of the contracting parties. To this end, the provisions are to be read in their context so that they comply with the object and purpose of the EPC.

In T 1173/97 the board analysed some aspects of the meaning of the expression "computer programs as such", with the emphasis on the "as such", and arrived at the conclusion that a computer program product is not excluded from patentability if it possesses the potential to bring about a "further" technical effect. The board was of the opinion that that interpretation to the exclusion of computer programs as such under Art. 52(2)(c) and (3) EPC 1973 was in full agreement with the provisions of the Vienna Convention. In its interpretation the board did not go beyond the ordinary meaning given to the terms of the EPC. The meaning it attributed to the expression "as such" in Art. 52(3) EPC 1973 was, in its opinion, not a special meaning within the meaning of Art. 31(4) Vienna Convention, which would have required the consent of the parties to the EPC. This decision has been mentioned here since it refers to the Vienna Convention; for the current state of play for the patentability of computer programs, see chapter I.A.2.4 and I.D.9.2.9.

1.1.2 Supplementary means of interpretation – "travaux préparatoires"

It is a generally recognised rule of international law that when interpreting international treaties ancillary use may be made of material relating to their genesis. Under Art. 32 of the Vienna Convention, recourse may be had to supplementary means of interpretation, particularly the preparatory work for a treaty and the circumstances in which it was concluded, in order to confirm the meaning arrived at by application of Art. 31 or to determine the meaning when application of Art. 31(a) leaves the meaning ambiguous or obscure, or (b) produces a meaning which is obviously nonsensical or unreasonable (T 128/82, OJ 1984, 164; see also G 2/07, OJ 2012, 130; G 1/08, OJ 2012, 206, point 4.3 of the Reasons; G 2/12 and G 2/13; T 2320/16, point 1.5.8 of the Reasons).

In G 2/12 and G 2/13 the Enlarged Board stated that the preparatory work ("travaux préparatoires") and the circumstances of the conclusion of the EPC serve only as supplementary sources of evidence to confirm the result of the interpretation or if no reasonable meaning can be determined by applying the general rule of interpretation (Art. 32 Vienna Convention).

According to opinion G 1/18 (OJ 2020, A26), it follows from Art. 32 of the Vienna Convention that the "travaux préparatoires" and the circumstances in which the EPC was concluded are to be taken into consideration to confirm a meaning or to determine the meaning when the initial interpretation according to the ordinary meaning would create ambiguity or lead to an absurd result. In G 1/18, the Enlarged Board also set out the conclusions reached by boards of appeal on the basis of their analysis of the "travaux préparatoires" and held them to be incorrect. Before examining what it considered to be clear from the "travaux préparatoires", it reiterated the key principles, particularly that such preparatory work on international treaties could be used as a supplementary means of interpreting them. In point V.3 of its opinion, the Enlarged Board analysed the legislative history of R. 69(1) EPC 1973 (R. 112 EPC). In point X, it first of all observed that, since the "majority" and "minority" views in the case law both took the "travaux préparatoires" as the basis for their reasoning, it was necessary to look at the draft articles and related discussions in detail and then turned to analysing the preparatory work on Art. 108 EPC.

The Enlarged Board in G 4/19 (OJ 2022, A24) considered that a provision falling under Art. 125 EPC may well cover issues which touch upon substantive matters. This interpretation could be based on the EPC itself, without reference to the preparatory documents (see point 27 of the Reasons). As regards another aspect of the interpretation of Art. 125 EPC (legal basis for a prohibition on double patenting; whether any such principle exists and is generally recognised in the contracting states), the Enlarged Board considered whether recourse could be had to the preparatory documents (see points 43 et seq. and 63 and 76 of the Reasons). On that point, the Enlarged Board did not endorse the opinion that the interpretation of the EPC (in itself) provided a clear answer. On the contrary, there were good reasons, including on the basis of Art. 32 Vienna Convention, for consulting the "travaux préparatoires". The Enlarged Board concluded that the preparatory documents demonstrated with overwhelming certainty that there was a real and effective agreement that the EPO should prohibit double patenting by taking into account principles of procedural law generally recognised in the contracting states, i.e. by

direct application of Art. 125 EPC. Since the competent legislator, here the Diplomatic Conference, had made it clear that this was a principle falling under Art. 125 EPC as a matter of interpretation of the law, the EPO was not only empowered to apply this principle but effectively also duty-bound to do so. On one specific point, the Enlarged Board found that it was more instructive to look at the German version of the "travaux préparatoires" than at their English text. The French version conveyed the same meaning as the German (G 4/19, see points 88 et seq. of the Reasons).

In J 8/82 (OJ 1984, 155) the board noted however that it was well recognised that Art. 31 and Art. 32 of the Vienna Convention on the interpretation of treaties merely codified existing public international law. In J 4/91 (OJ 1992, 402), for example, the Legal Board of Appeal drew on historical material relating to the EPC 1973 to support its view, arrived at from a teleological and systematic interpretation of the relevant provisions, regarding the additional period for paying renewal fees. G 1/98 (OJ 2000, 111) discussed the purpose of Art. 53(b) EPC 1973, its relationship to other international treaties and legal texts, and its legislative history. In G 3/98 and G 2/99 (OJ 2001, 62 and 83), the Enlarged Board reached its conclusions on Art. 55(1) EPC 1973 after interpreting the wording and considering also the legislator's intention and the aspects of systematic, historical and dynamic interpretation. In opinion G 3/19 (OJ 2020, A119), the Enlarged Board, having set out all the ways that Art. 53(b) EPC had been interpreted up to G 2/12 (and G 2/13), took account of the developments after G 2/12 and concluded that, in view of the clear legislative intent of the contracting states as represented in the Administrative Council and having regard to Art. 31(4) Vienna Convention, the introduction of R. 28(2) EPC allowed and indeed called for a dynamic interpretation of Art. 53(b) EPC.

1.1.3 Interpretation of exclusions from patentability under the Vienna Convention

In G 1/07 (OJ 2011, 134) the appellant had submitted that exclusions to patentability had to be construed narrowly according to Art. 31 and 32 of the Vienna Convention. The Enlarged Board held that no general principle of narrow interpretation of exclusions from patentability which would be applicable **a priori** to the interpretation of any such exclusions can be derived from the Vienna Convention. Rather, the general rule in Art. 31, point 1, of the Vienna Convention that a treaty shall be interpreted in good faith in accordance with the ordinary meaning to be given to the terms of the treaty in their context and in the light of its object and purpose must apply to the exclusion clauses contained in the EPC in the same manner as to any other provision. If the interpretation of the provision concerned according to these principles of interpretation leads to the result that a narrow interpretation is the right approach then and only then is such restrictive meaning to be given to it.

In G 2/12 and G 2/13 the Enlarged Board came to the conclusion that whilst there is no general notion of an obligatorily restrictive construction of exceptions to patentability, for example, such as that adopted by the Court of Justice of the European Union (CJEU) when insisting on a narrow interpretation of exceptions to or derogations from fundamental EC Treaty principles embodied in the four freedoms (Judgment of 21 June 1974, C 2-74, *Jean Reyners v. Belgian State*, ECJ 1974, 631), such a narrow interpretation might well result from applying the general principles of interpretation to a specific provision with